

25STCV16644 25STCV16644

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-09-11

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Plaintiffs Mayra P. Enriquez ("Enriquez" and Guillermina Borroel ("Borroel") (collectively, the "Plaintiffs") sued Defendant American Honda Motor Company, Inc. ("Honda") under the Song-Beverly Consumer Warranty Act for breaches of warranties associated with a 2017 Honda Civic motor vehicle that the Plaintiffs purchased from a Honda dealership and that Honda distributed.

Honda has filed two motions -- one directed at Enriquez, the other at Borroel -- seeking orders from the Court to deem admitted the matters set forth in Requests for Admission ("the RFAs") that Honda propounded on each Plaintiff. Honda also sought in the motions monetary sanctions against the Plaintiffs for the attorney's fees and costs it expended in connection with the motions. The Court is denying the motions as moot to the extent they sought orders deeming admitted the matters in the RFAs. The Court is granting the motions in part to the extent that they sought monetary sanctions against the Plaintiffs.

Honda filed its motions pursuant to Code of Civil Procedure section 2033.280, subdivision (b). That provision states that when a party fails to timely respond to requests for admissions propounded on that party, the party that propounded the requests "may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted"

(Code Civ. Pro. § 20233.280, subd. (b).)

In turn, section 2033.280, subdivision (c) provides that "[t]he court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section

2033.220." (Id. § 2033.280, subdivision (c).) Section 2033.220 is the provision that governs the form of responses to requests for admission. Section 2033.280, subdivision (c) further provides that "[i]t is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated th[e] motion." This mandate applies even if the party or attorney served Code-compliant responses to requests for admissions prior to the hearing on the motion to have the matters in the requests deemed admitted, and even if there is a substantial justification for the party's/attorney's failure to respond to the requests for admission in a timely fashion. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 8:1376, at p. 27.)

Neither of the Plaintiffs provided timely responses to the RFAs that Honda propounded on them. However, prior to the hearing on Honda's motions, each Plaintiff provided responses to the RFAs. Honda has acknowledged that the Plaintiffs' responses were Code-compliant. Thus, under section 2033.280, subdivision (c), Honda's motions must be denied as moot to the extent that they sought orders deeming the matters in the RFAs admitted.

The Plaintiffs' Code-compliant responses to the RFAs do not, however, moot Honda's request for the imposition of monetary sanctions against the Plaintiffs.

In fact, as indicated above, section 2033.280, subdivision (c) mandates the imposition of monetary sanctions against parties that fail, like the Plaintiffs here did, to provide timely responses to requests for admission. Honda seeks \$1,020.00 in monetary sanctions per motion. Honda states that this figure reflects one hour of attorney work preparing the motions, two hours of attorney work to review oppositions and prepare replies, and one hour of attorney work to prepare for and attend the hearing on the motions -- all at a billing rate of \$240 per hour. The \$1,020.00 figure also reflects \$120 in filing fees, \$60 per motion.

Not all of the anticipated work was conducted, however. Specifically, Honda did not file reply briefs. To account for that, the Court is reducing the amount of Honda's request for monetary sanctions by one hour of attorney time per Plaintiff, or \$480 (240 x 2).

The Court is thus imposing monetary sanctions against the Plaintiffs in the amount of \$780 per motion, for a total of \$1,560. Plaintiffs must pay that amount to Honda's counsel within 60 days of this order.